SENATE DOCKET, NO. 1944 FILED ON: 1/17/2025

SENATE . . . . . No. 1617

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting the sale of dextromethorphan to minors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
Rebecca L. Rausch	*Norfolk, Worcester and Middlesex*

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By Ms. Rausch, a petition (accompanied by bill, Senate, No. 1617) of Rebecca L. Rausch for legislation to prohibit the sale of dextromethorphan to minors. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. *1456* OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting the sale of dextromethorphan to minors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

Chapter 94C of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 27A the following section:-

Section 27B. (a)(1) It shall be unlawful to sell a nonprescription material, compound, mixture or preparation containing any detectable quantity of dextromethorphan, its salts or optical isomers, or salts of optical isomers to any person under the age of 18.

(2) It shall be unlawful for any person under the age of 18 to purchase or attempt to purchase a nonprescription material, compound, mixture or preparation containing any detectable quantity of dextromethorphan, its salts or optical isomers, or salts of optical isomers.

(3) A nonprescription material, compound, mixture or preparation containing any detectable quantity of dextromethorphan, its salts or optical isomers, or salts of optical isomers

shall not be sold unless the purchaser presents photo identification that validates the individual's age or from the purchaser's outward appearance the person making the sale would reasonably presume the purchaser to be twenty-seven years of age or older. Valid identification shall include a valid, current form of photo identification issued by a federal, state, county or municipal government, or subdivision or agency thereof, including but not limited to a motor vehicle operator's license, a Massachusetts state identification card, an identification card issued to a member of the Armed Forces or a passport.

(4) Nothing in the act shall be construed to impose any compliance requirement on a retail entity other than manually obtaining and verifying proof of age as a condition of sale, including placement of products in a specific place within a store, other restrictions on consumers' direct access to finished drug products, or the maintenance of transaction records. Any manufacturer, distributor, or retailer whose employee or representative, during the course of the employee or representative's employment or association with the manufacturer, distributor, or retailer sells or trades dextromethorphan in violation of paragraph (1) shall receive a warning letter from the state Bureau of Health Care Safety and Quality for the first such violation. Any employee or representative of a manufacturer, distributor, or retailer who, during the course of employee or representative's employment or association with that manufacturer distributor, or retailer sells or trades dextromethorphan in violation of paragraph (1) shall be subject to a civil penalty in an amount of a) not more than $150 for the second such violation by a person b) not more than $250 for the third such violation or subsequent such violation by a person. Any person who purchases dextromethorphan in violation of paragraph (2) is subject to a civil fine of $50.

(b) This section shall not apply to a compound, mixture or preparation containing any detectable quantity of dextromethorphan which is dispensed pursuant to a valid prescription from a licensed practitioner with prescriptive authority.

(c) This act preempts any ordinance regulating the sale, distribution, receipt, or possession of dextromethorphan enacted by a county, city, town, or other political subdivision of this state, and dextromethorphan is not subject to further regulation by such subdivisions.